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JUNQIAO XIAO, State Bar No.: 341670
HYO JIN JULIA JUNG, State Bar No.: 316090
MICHAEL D. KAHN, State Bar No.: 236898
Midland Credit Management, Inc.
350 CAMINO DE LA REINA, SUITE 100
SAN DIEGO, CA 92108
Telephone: (866) 300-8750
Facsimile: (858) 309-1588
CaliforniaLegal@mcmcg.com
CA Debt Collector License Number Pending
Attorneys for Plaintiff

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Superior Court of California,
County of Los Angeles
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David W. Slayton,
Executive Officer/Clerk of Court,
By H. Martinez, Deputy Clerk

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF LOS ANGELES**

CHATSWORTH COURTHOUSE NORTH VALLEY DISTRICT

MIDLAND CREDIT MANAGEMENT, INC.

Plaintiff,

vs.

VARDUI KIRAKOSSYAN;
and DOES 1 through 10, inclusive
Defendant.

Case No. **24CHLC00776**

COMPLAINT FOR:

(1) Account Stated

PRAYER AMT: \$3,521.32
LIMITED

MIDLAND CREDIT MANAGEMENT, INC., ("Plaintiff"), by counsel, sues VARDUI KIRAKOSSYAN, ("Defendant") under Account Stated and in support thereof states:

1. Plaintiff is authorized to do business in CALIFORNIA, with its principal place of business at 350 CAMINO DE LA REINA SUITE 100 SAN DIEGO CA 92108. Plaintiff owns portfolios of consumer receivables, which it attempts to collect. Plaintiff strives to treat its consumers, such as Defendant, with respect, compassion and integrity, hoping to provide mutually-beneficial opportunities for consumers to repay their debts and attain financial recovery.
2. Defendant is a resident of LOS ANGELES County, State of California and is subject to this Court's jurisdiction.
3. Plaintiff is unaware of the true names and capacities of Defendants sued by the fictitious names DOES 1 through 10. Plaintiff will ask leave of court to amend this complaint as and when the true names and capacities of Defendants named herein as DOES 1 through 10 have been ascertained.
Pursuant to California Civil Code ("CA CIVIL") §1788.58(a)(1)-(9), Plaintiff alleges:
4. Plaintiff is a debt buyer as defined by CA CIVIL §1788.50(a).

- 1 5. Defendant established a credit account (the "Account") with CITIBANK, N.A.. The
2 amount due is the result of transactions that occurred on the Account. Defendant was
3 provided statements evidencing Defendant's use of the Account and the balance due.
4 Defendant failed to make the required payments and subsequently defaulted on the
5 Account on February 04, 2022. Thereafter, Plaintiff was assigned all rights, title, and
6 interest in the Account.
- 7 6. Plaintiff is the sole owner of the debt. Attached as Exhibit A is a true and correct copy of
8 the Bill of Sale from CITIBANK, N.A., to Plaintiff. The Account was purchased by
9 Plaintiff on October 26, 2022.
- 10 7. The Account balance at the time of charge-off was \$3,521.32. Plaintiff alleges that the
11 date of default is February 04, 2022 and the date of the last payment was March 27,
12 2022.
- 13 8. The name of the charge-off creditor at the time of charge-off is CITIBANK, N.A.. The
14 address utilized by CITIBANK, N.A. at the time of charge-off was 5800 SOUTH
15 CORPORATE PLACE SIOUX FALLS, SD 57108. At the time of charge off, the
16 account number associated with the debt was XXXXXXXX-XX-1945.
- 17 9. The name of the debtor as it appeared in the records of CITIBANK, N.A. is VARDUI
18 KIRAKOSSYAN and the last known address as it appeared in the records of
19 CITIBANK, N.A. is 1223 CARLTON DR GLENDALE CA 91205.
- 20 10. The name and address of all post charge-off purchasers of the debt are as follows:
- | Name | Address |
|------------------------------------|--|
| MIDLAND CREDIT MANAGEMENT,
INC. | 350 CAMINO DE LA REINA SUITE 100 SAN
DIEGO CA 92108 |
- 21 11. Plaintiff has complied with the provisions of CA CIVIL §1788.52. Plaintiff informed
22 Defendant of the assignment of the Account.
- 23 12. Pursuant to CA CIVIL §1788.58(b), attached as Exhibit B is a true and correct copy of a
24 monthly statement recording a purchase transaction, payment, or balance transfer while
25 the Account was active as required by CA CIVIL §1788.52(b).
- 26 13. Attached as Exhibit C is a true and correct copy of a billing statement that was mailed to
27 Defendant stating the balance due on the Account at or around the time of charge-off.
28

- 1 14. Plaintiff acquired all right, title, and interest to the Account. To the extent that Plaintiff
2 acts in its capacity as successor-in-interest to the original creditor or its assigns,
3 references herein to Plaintiff may include Plaintiff's predecessor-in-interest.
- 4 15. Plaintiff has attempted to contact Defendant through several means in an effort to resolve
5 the Account, but has been unsuccessful. Defendant has not repaid this debt. Plaintiff
6 works with consumers like Defendant to find mutually acceptable solutions, often
7 offering discounts, hardship plans, and a variety of payment options. The majority of
8 Plaintiff's consumers ignore calls or letters, and some simply refuse to repay their
9 obligations. When this happens, Plaintiff must decide whether to pursue collection
10 through legal channels, including litigation such as the present action against Defendant.
11 Nonetheless, Plaintiff remains interested in discovering a mutually beneficial solution
12 through voluntary payments, if possible, in this case.
- 13 16. Before commencement of this action, Plaintiff informed Defendant in writing, that it
14 intended to file this action and that this action could result in a judgment against
15 Defendant that would include court costs allowed by California Code of Civil Procedure
16 § 1033(b)(2).

17 **FIRST CAUSE OF ACTION**

18 **ACCOUNT STATED**

- 19 17. Plaintiff realleges and incorporates by reference the foregoing paragraphs.
- 20 18. An account was stated in writing between Defendant and CITIBANK, N.A.. Defendant
21 opened and derived benefit from the Account. By using the Account, Defendant
22 expressly or impliedly promised to repay CITIBANK, N.A.. Within the last four years,
23 Defendant became indebted on the Account.
- 24 19. On the Account, a balance of \$3,521.32 was stated to be due to CITIBANK, N.A. from
25 Defendant. Plaintiff has no record of Defendant objecting to the balance due.
- 26 20. Before the commencement of this action, Plaintiff was assigned the Account and
27 indebtedness. Plaintiff is now the sole owner of the Account.
- 28 21. Plaintiff has made a demand on Defendant for repayment of the Account, but Defendant
has failed to pay the balance due.
22. The current balance presently due and owing is \$3,521.32 which includes payments, set-
offs, credits or allowances, if any, at or after charge-off.

1
2 **WHEREFORE**, Plaintiff requests judgment against Defendant for \$3,521.32, costs of this action
3 and post judgment interest at the statutory rate. Plaintiff waives any claim for pre- judgment interest and
4 attorney's fees.

5
6
7 Dated: December 26, 2023

MIDLAND CREDIT MANAGEMENT, INC.

8
9 
10 By: Michael D. Kahn, Esq.
11 ☐ ROBERT K. HANNA / ☐ JUNQIAO XIAO
12 ☒ MICHAEL D. KAHN / ☐ HYO JIN JULIA JUNG
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EXHIBIT A

BILL OF SALE AND ASSIGNMENT
March 2022 Brands Fresh 180 Day Flow Lot 2

THIS BILL OF SALE AND ASSIGNMENT dated October 26, 2022, is by Citibank, N.A., a national banking association organized under the laws of the United States, located at 5800 South Corporate Place, Sioux Falls, SD 57108 ("Bank"), to Midland Credit Management, Inc., a corporation organized under the laws of Kansas, with its headquarters/principal place of business at 350 Camino De La Reina, Suite 100, San Diego, CA 92108 ("Buyer").

For value received and subject to the terms and conditions of the Master Purchase and Sale Agreement dated April 30, 2021 between Bank, Department Stores National Bank, and Buyer (the "Master Purchase Agreement"), and that certain Addendum No. 9 dated March 11, 2022, between Bank and Buyer (the "Addendum", and together with the Master Purchase Agreement, the "Agreement"), the Bank does hereby transfer, sell, assign, convey, grant, bargain, set over and deliver to Buyer, and to Buyer's successors and assigns, the Accounts summarized on the Asset Schedule attached hereto as Exhibit A and included in the Final Electronic File. Capitalized terms not defined herein shall have the definition ascribed in the Agreement.

With respect to information for the Accounts summarized on the Asset Schedule and included in the Final Electronic File, the Bank represents and warrants to Buyer that (i) the Account information constitutes the Bank's own business records and accurately reflects in all material respects the information in the Bank's database; (ii) the Account information was kept in the regular course of business; (iii) the Account information was made at or near the time by, or from information transmitted by, a person with knowledge of the data entered into and maintained in the Account's database; and (iv) it is the regular practice of the Bank's business to maintain and compile such data.

CITIBANK, N.A.

MIDLAND CREDIT MANAGEMENT, INC.

By: Brandy Reardon
(Signature)

By: Danielle Wohlfahrt
(Signature)

Name: Brandy Reardon

Name: Danielle Wohlfahrt

Title: Authorized Party

Title: VP of BD

Exhibit A to Bill of Sale

The individual Accounts transferred are described in the Final Electronic File named Encore-Brands-Fresh-Flow-Lot2-1022 and delivered by the Bank to Buyer, the same deemed attached hereto by this reference.

Lot	Sale ID	# of Accounts	Sale Balance	Cut-Off Date	Purchase Price Percentage
Brands Fresh Flow Lot 2	101322MC1MU4FM			10/13/2022	

AFFIDAVIT OF SALE OF ACCOUNT

State of Missouri
County of Platte

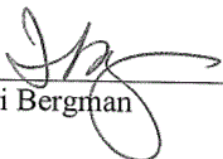
Terri Bergman, being duly sworn, deposes and says:

I am an authorized employee of Citibank, N.A. ("CBNA") located at 5800 South Corporate Place, Sioux Falls, SD 57108, am authorized to make the statements and representations herein and I am over 18 years of age. In this position, I have access to the creditor's books and records and am aware of the process of the sale of accounts and electronic storage of business records.

On or about October 26, 2022, CBNA sold a pool of charged-off accounts (the Accounts) by a Master Purchase and Sale Agreement dated April 30, 2021, Bill of Sale, and Addendum No. 9 dated March 11, 2022 to Midland Credit Management, Inc.. As part of the sale of the Accounts, certain electronic records were transferred on individual accounts to the debt buyer. These records were kept in the ordinary course of business of creditor.

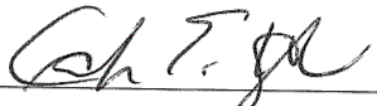
I am not aware of any errors in the information provided about the Accounts. The above statements are true to the best of my knowledge.

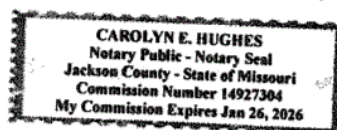
Signed this 1 day of November, 2022.


Terri Bergman

State of Missouri)
) ss
County of Platte)

On this 1 day of Nov, 2022, before me, the undersigned notary, personally appeared Terri Bergman, personally known to me to be the person who signed the preceding or attached document in my presence and who swore or affirmed to me that the contents of the document are truthful and accurate to the best of his/her knowledge and belief.

 [SEAL]

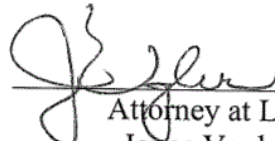


CERTIFICATE OF CONFORMITY

STATE OF MISSOURI CITY OF KANSAS CITY

I, Joyce Vogler an attorney-at-law of the State of Missouri who is licensed to practice law in the State of Missouri and is fully acquainted with the laws of the State of Missouri pertaining to the acknowledgement or proof of deeds of real property to be recorded therein, do hereby certify that I am duly qualified to make this certificate of conformity pursuant to Section 299-a of the Real Property Law of the State of New York and hereby certify that the acknowledgement or proof upon the foregoing document was taken by Carolyn E. Hughes a notary public in the State of Missouri, in the manner prescribed by the laws of the State of Missouri and conforms to the laws thereof in all respects.

IN WITNESS WHEREOF, I have hereunto set my signature, this 1st day of Nov, 2022.



Attorney at Law
Joyce Vogler

Field	Field Data
Account Number	1945
First Name	VARDUI
Last Name	KIRAKOSSYAN
SSN	XXX-XX-2948
Date of Birth	
Address 1	1223 CARLTON DR
City	GLENDALE
State	CA
Zip	91205
Home Phone	8182982788
Open Date	11/20/2012
Last Purchase Date	02/07/2022
Last Payment Date	03/27/2022
Last Payment Amount	\$140.00
Sale Amount	\$3,521.32
Charge Off Date	09/07/2022
Charge off Balance	\$3,521.32
Post Charge Off Interest	\$0.00
Post Charge off Fee	\$0.00
Post Charge off Payments	\$0.00
Post Charge off Payments and Credits	\$0.00
Post Charge off Credits	\$0.00
Affinity	THANKYOU PREFERRED
Alternate Account #1	6528
Alternate Account #2	1589

Account information provided by Citibank, N.A. pursuant to the Bill of Sale/Assignment of Accounts transferred on or about 10/26/2022 in connection with the sale of accounts from Citibank, N.A. to Midland Credit Management, Inc.

Encore-Brands-Fresh-Flow-Lot2-1022

EXHIBIT B

Citi ThankYou® Preferred Card



VARDUI KIRAKOSSYAN

Member Since 2012 Account number ending in: 1945

Billing Period: **03/08/22-04/07/22**

www.citicards.com

Customer Service 1-800-THANKYOU(1-800-842-6596)

TTY: 711

30X 6500 SIOUX FALLS, SD 57117

APRIL STATEMENT

Minimum payment due: \$306.00
New balance as of 04/07/22: \$3,173.21
Payment due date: 05/03/22

See the last page of this statement for important information about how to avoid paying interest on purchases.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$40 and your APRs may be increased up to the Penalty APR of 29.99%.

Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on this statement in about...	And you will end up paying an estimated total of...
Only the minimum payment	10 year(s)	\$5,047

For information about credit counseling services, call 1-877-337-8188.

Your account is past due \$127.50 and overlimit \$73.21. Please pay at least the minimum payment due, which includes a past due amount and an overlimit amount.

Account Summary

Previous balance	\$3,239.92
Payments	-\$140.00
Credits	-\$0.00
Purchases	+\$0.00
Cash advances	+\$0.00
Fees	+\$40.00
Interest	+\$33.29

New balance \$3,173.21

Credit Limit

Credit limit \$3,100

Includes \$800 cash advance limit

thankyou
from citi



Total ThankYou Member

Available Point Balance: 0

as of 03/31/22

» See page 3 for more information about your rewards.

For Payments, send check to: CITI CARDS, PO BOX 78045, Phoenix, AZ, 85062-8045

Pay your bill from virtually anywhere with the Citi Mobile® App and Citi® Online



To download:
Text 'App15' to MyCiti (692484)
or go to your device's app store.
Or visit www.citicards.com

Minimum payment due \$306.00

New balance \$3,173.21

Payment due date 05/03/22

Amount enclosed:

Account number ending in 1945

Please make check payable to CITI CARDS.

000000 MC 00 A 0

VARDUI KIRAKOSSYAN
1223 CARLTON DR
GLENDALE CA 91205-1409

CITI CARDS
PO BOX 78045
Phoenix, AZ 85062-8045

15009 0030600 0317321 0014000 0 1945 0506

VARDUI KIRAKOSSYAN

TTY:711

Account Summary

Trans. date	Post date	Description	Amount
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Payments, Credits and Adjustments

	03/27	PAYMENT THANK YOU	-\$140.00
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Fees charged

Date	Description	Amount
04/07	LATE FEE - MAR PAYMENT PAST DUE	\$40.00

Total fees charged in this billing period	\$40.00
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Interest charged

Date	Description	Amount
04/07	INTEREST CHARGED TO STANDARD PURCH	\$1.52
04/07	INTEREST CHARGED TO PUR PR-06/28/21.	\$7.37
04/07	INTEREST CHARGED TO PUR PR-11/26/21.	\$19.95
04/07	INTEREST CHARGED TO PUR PR-12/28/21.	\$4.45

Total interest charged in this billing period	\$33.29
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2022 totals year-to-date

Total fees charged in 2022	\$120.00
Total interest charged in 2022	\$125.79

Interest charge calculation

Days in billing cycle: 31

Your **Annual Percentage Rate (APR)** is the annual interest rate on your account.

Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	12.24% (V)	\$145.90 (D)	\$1.52
Pur Pr 062821	12.24% (V)	\$708.73 (D)	\$7.37
Pur Pr 112621	12.24% (V)	\$1,919.15 (D)	\$19.95
Pur Pr 122821	12.24% (V)	\$428.20 (D)	\$4.45
ADVANCES			
Standard Adv	25.49% (V)	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

Account messages

Due to your late payment status you did not earn any points this month. To view your scheduled payments and payment history, sign on to Account Online using the URL on the back of your card. To view available ThankYou Points, visit www.ThankYou.com

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**Member ID: 8910232775050025****ThankYou Points Earned This Period**

2X at Restaurants	0
2X on Live Entertainment	0
2X on Cable and Popular Streaming	0
1X on All Other Purchases	0

Total Earned This Period	0
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» Visit thankyou.com to redeem points or see full rewards details.

Bonus Points may take one to two billing cycles to appear on your statement. Please refer to the specific terms and conditions pertaining to the promotion for further details.

EXHIBIT C

Citi ThankYou® Preferred Card



VARDUI KIRAKOSSYAN

Member Since 2012 Account number ending in: 1945

Billing Period: **08/06/22-09/07/22**

www.citicards.com

Customer Service 1-800-THANKYOU(1-800-842-6596)

TTY: 711

30X 6500 SIOUX FALLS, SD 57117

SEPTEMBER STATEMENT

Minimum payment due: **\$3,521.32**
New balance as of 09/07/22: **\$3,521.32**
Payment due date: **09/07/22**

See the last page of this statement for important information about how to avoid paying interest on purchases.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$40 and your APRs may be increased up to the Penalty APR of 29.99%.

Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on this statement in about...	And you will end up paying an estimated total of...
Only the minimum payment	1 month(s)	\$3,521

For information about credit counseling services, call 1-877-337-8188.

Account Summary

Previous balance	\$3,476.29
Payments	-\$0.00
Credits	-\$0.00
Purchases	+\$0.00
Cash advances	+\$0.00
Fees	+\$0.00
Interest	+\$45.03

New balance **\$3,521.32**

Credit Limit

Credit limit **\$3,100**
Includes \$800 cash advance limit

For Payments, send check to: CITI CARDS, PO BOX 78045, Phoenix, AZ, 85062-8045

Pay your bill from virtually anywhere with the Citi Mobile® App and Citi® Online



To download:
Text 'App15' to MyCiti (692484)
or go to your device's app store.
Or visit www.citicards.com

Minimum payment due **\$3,521.32**
New balance **\$3,521.32**
Payment due date **09/07/22**

Amount enclosed:

Account number ending in 1945
Please make check payable to CITI CARDS.

000000 MC 32 A 0

VARDUI KIRAKOSSYAN
1223 CARLTON DR
GLENDALE CA 91205-1409

CITI CARDS
PO BOX 78045
Phoenix, AZ 85062-8045

15009 0352132 0352132 0014000 0 1945 0508

Account Summary

Trans. date	Post date	Description	Amount
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Fees charged

Total fees charged in this billing period	\$0.00
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Interest charged

Date	Description	Amount
09/07	INTEREST CHARGED TO STANDARD PURCH	\$1.04
09/07	INTEREST CHARGED TO PUR PR-06/28/21.	\$8.86
09/07	INTEREST CHARGED TO PUR PR-11/26/21.	\$25.78
09/07	INTEREST CHARGED TO PUR PR-06/28/22.	\$3.59
09/07	INTEREST CHARGED TO PUR PR-12/28/21.	\$5.76
Total interest charged in this billing period		\$45.03

2022 totals year-to-date	
Total fees charged in 2022	\$280.00
Total interest charged in 2022	\$313.90

Interest charge calculation			Days in billing cycle: 33
Your Annual Percentage Rate (APR) is the annual interest rate on your account.			
Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	14.24% (V)	\$80.96 (D)	\$1.04
Pur Pr 062821	14.24% (V)	\$687.87 (D)	\$8.86
Pur Pr 112621	14.24% (V)	\$2,002.62 (D)	\$25.78
Pur Pr 062822	14.24% (V)	\$278.84 (D)	\$3.59
Pur Pr 122821	14.24% (V)	\$447.78 (D)	\$5.76
ADVANCES			
Standard Adv	27.49% (V)	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

Account messages

Please note that if we received your pay by phone or online payment between 5 p.m. ET and midnight ET on the last day of your billing period, your payment was credited as of the date of receipt, but will not be reflected until your next statement.

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